

25LBCV01969 25LBCV01969

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-14

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Case Number: 25LBCV01969 Hearing Date: July 14, 2026 Dept: S27

1. Motions

to Compel

Plaintiff served objections-only

unverified responses to Defendant's RFAs, RPDs, SROGs, and FROGs on

1/06/26. Defendant attempted to meet and

confer, but Plaintiff did not respond.

Defendant moves to compel further responses, without objections, and

imposition of monetary sanctions.

Any opposition to the motion was

due, per CCP §1005(b), on or before 6/30/26.

The Court has not received timely opposition and will not consider

late-filed opposition. Notably, pursuant

to Fairmont

Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255, Plaintiff has

the burden to justify each and every objection interposed by way of opposition

papers. In the absence of opposition,

Plaintiff has necessarily failed to do so, and all objections are overruled.

The motions are granted. Plaintiff is ordered to serve further responses,

without objections, to the outstanding discovery within seven days. CCP §§2030.300(a), 2031.310(a),

2033.290(a).

Defendant seeks imposition of

sanctions in connection with the motions.

In the absence of opposition, sanctions are mandatory. §§2030.300(c), 2031.310(c), 2033.290(c). Defendant seeks sanctions in the amount of

\$1155/motion. Defense Counsel bills at the rate of \$365/hour. Defendant seeks to recover one hour of attorney time to prepare each motion, which is reasonable and granted. Defendant seeks to recover two hours to review opposition, prepare a reply, and appear at the hearing, and seeks this in connection with each of the four motions. No opposition was filed and therefore no reply was necessary. The Court awards one hour to appear at the hearing, and awards the time once. The Court therefore awards a total of five hours of attorney time at the rate of \$365/hour, or \$1825 in attorneys' fees. The Court awards the requested four filing fees of \$60 each, or \$240 in costs.

Sanctions are sought and imposed against Plaintiff and his attorney of record, jointly and severally. They are ordered to pay sanctions to Defendant, by and through its attorney of record, in the total amount of \$2065, within twenty days.

2. OSC

re: Sanctions

On 5/08/26, the Court heard Defendant's ex parte application to advance a hearing date for a motion to compel Plaintiff's deposition and vehicle inspection. The Court ordered Plaintiff to make himself available for deposition by 5/29/26 and to make his vehicle available for inspection by 5/29/26.

On 6/09/26, Defendant filed motions to compel compliance with the Court's 5/08/26 order compelling a vehicle inspection and a deposition. Because the earliest available date for hearing was after trial, on 6/26/26, the Court heard Defendant's ex parte application to advance the hearing date. The Court vacated the motions and instead set an OSC re: sanctions for failure to attend deposition and provide the vehicle for inspection.

Plaintiff must appear and show cause why sanctions should not be imposed if he wishes to avoid imposition of additional sanctions for his failure to comply with the Court's 5/08/26 order.

Defendant is ordered to give notice.